

M/s Parmarth Steel & Alloys Pvt. Ltd. v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 1 March 2017 · Writ-C No. 9258 of 2017 · **Writ petition dismissed; installments to be sought under clause 6.14.**

HEADNOTE

A writ against an electricity-duty demand issued after the consumer's earlier challenge was dismissed and Supreme Court interim protection vacated was not entertained. A request that the High Court fix installments because of financial hardship is to be raised by invoking clause 6.14 of the Electricity Supply Code, 2005.

FACTUAL SUMMARY

After the company's 2013 writ against an electricity-duty increase was dismissed on 16 January 2014 and the Supreme Court vacated interim protection on 9 October 2015, the respondents issued a demand for the duty. The company challenged that demand and relied on a 6 March 2013 Electricity Lokpal direction to adjust Rs.10,41,967 in future bills, though it had itself challenged the Lokpal order in a still-pending 2013 writ. Counsel also asked the Court to fix installments for financial hardship.

REUSABLE CONSTRUCTIONS

1. A plea that the High Court itself fix installments of an electricity demand on the ground of financial hardship is to be raised under clause 6.14 of the Electricity Supply Code, 2005, not by entertaining the writ. ¶ 4

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment facility for financial hardship

HOLDING

Where an electricity-duty demand follows dismissal of the consumer's earlier writ and vacation of Supreme Court interim protection, the High Court will not entertain a fresh writ against that demand, nor fix installments for financial hardship; that installment request is to be raised by invoking clause 6.14 of the Electricity Supply Code, 2005. ¶ 3-5

PRINCIPLE TAGS

instalment-facility-clause-6.14-for-financial-distress Counsel's request that the Court fix installments because the petitioners were facing financial hardship was refused in the writ and pointed to clause 6.14. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY LOKPAL'S 6 MARCH 2013 DIRECTION TO ADJUST RS.10,41,967 IN FUTURE BILLS REDUCED THE DEMAND

The consumer had itself challenged that Lokpal order in pending Writ Petition No. 30106 of 2013, and the petition contained no averment that the amount had not been adjusted. ¶ 3